

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

KAREY MATTHEWS,

Plaintiff

INDEX NO.:

-Against-

CITY OF NEW YORK,
DET. PATRICK FLATLEY, INDIVIDUALLY,
KAREN KEMP-PROSTERMAN, D.D.S.,
WILLIAM MARTINEZ and
BRONX-LEBANON HOSPITAL CENTER

Defendants

X

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

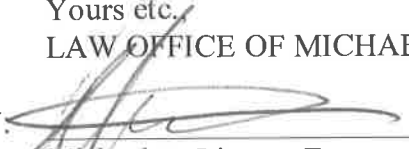
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, N.Y.
August 20, 2012

Yours etc.

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:


Michael D. Litman, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574-8330
Fax: (914) 358-5379

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KAREY MATTHEWS,

Plaintiff

INDEX NO.:

-Against-

VERIFIED COMPLAINT

CITY OF NEW YORK,
DET. PATRICK FLATLEY, INDIVIDUALLY,
KAREN KEMP-PROSTERMAN, D.D.S.,
WILLIAM MARTINEZ and
BRONX-LEBANON HOSPITAL CENTER
Defendants

JURY TRIAL DEMANDED

Plaintiff, KAREY MATTHEWS, by and through his undersigned attorneys, for his
complaint against defendant states:

1. At all relevant times, Plaintiff, was and is a resident of the State of New Jersey, County of Bergen.
2. At all times relevant herein the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times relevant herein, the City of New York operated a municipal police department known as the New York Police Department.
4. At all times relevant, defendant Detective Patrick Flatley, was and is a resident of the State of New York.
5. On or about June 28, 2011, and at all times relevant herein, Detective Patrick Flatley (hereinafter "Flatley") was employed as a police detective for the City of New York, and was acting in the course of his employment.
6. At all times relevant, defendant Karen Kemp-Prosterman, D.D.S., (hereinafter

“Prosterman”), was and is a resident of the State of New York.

7. At all times relevant herein, Bronx-Lebanon Hospital Center, (hereinafter “Hospital”), was and is a not-for-profit corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. At all times relevant, defendant William Martinez, (hereinafter “Martinez”), was and is a resident of the State of New York.
9. At all times relevant herein, Defendant Prosterman was employed by Defendant Hospital as an attending pediatric dentist.
10. At all times relevant herein, Defendant Martinez was employed by Defendant Hospital as a security officer.
11. Prior to, and including May 4, 2011, Plaintiff was a resident dentist at the Hospital, being supervised and instructed by Prosterman.
12. On or about May 4, 2011, Plaintiff’s employment as a resident dentist at the Hospital was terminated by Prosterman, due to her racial prejudice against Plaintiff, caused by Plaintiff’s lighter skin color.
13. Upon information and belief, Prosterman, at some point between May 5, 2011 and June 1, 2011, falsely accused Plaintiff of taking property from the Hospital in order to get Plaintiff arrested and damage his reputation.
14. On or about June 1, 2011, Martinez, in his capacity as a security officer employed by the Hospital, filed a complaint with Defendant Flatley, alleging that Plaintiff had taken patient files on May 5, 2011, without authorization to do so.
15. On or about June 28, 2011, at approximately 9:00 AM, Plaintiff was arrested when he and his attorney voluntarily went to the New York Police Department station for the 46th

Precinct, located at 2120 Ryer Ave., Bronx, NY 10457.

16. On or about June 28, 2011, at approximately 9:00 PM, Plaintiff was arraigned on the charges of Burglary in the Third Degree; Criminal Possession of Stolen Property in the Fifth Degree; Petit Larceny; Criminal Trespassing in the Third Degree; and Criminal Trespassing in the Fourth Degree in the Bronx County Supreme Court, he entered a plea of not guilty and was released on his own recognizance.
17. The Bronx County District Attorney's Office continues to prosecute the Plaintiff on the aforementioned charges.

FALSE ARREST, ABUSE OF PROCESS AND MALICIOUS PROSECUTION

18. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
19. At all times relevant herein, there was no probable cause to believe that Plaintiff had taken any property, other than his own, from the Hospital.
20. At all times relevant herein, there was no probable cause for the arrest of Plaintiff and there was no probable cause to believe that a prosecution could succeed.
21. Prosterman falsely accused Plaintiff of taking property from the Hospital, despite no evidence to support those accusations.
22. By and through the aforesaid wrongful acts, Prosterman caused Plaintiff to be wrongfully and falsely arrested by Flatley, then maliciously prosecuted based on fabricated evidence by the Bronx County District Attorney's Office.
23. By and through the aforesaid wrongful acts, Prosterman and the City of New York initiated and continued a criminal proceeding against Plaintiff, without probable cause and based upon manufactured and fabricated evidence.

24. The aforementioned prosecution was maliciously initiated and continued by Prosterman and the City of New York against Plaintiff.
25. Prosterman at all times relevant herein, commenced, initiated and continued the aforementioned charges and prosecution to obtain a collateral objective outside the legitimate ends of the legal process.
26. At all times relevant herein Prosterman acted with intent to do harm to Plaintiff without excuse or justification.
27. The aforesaid acts constitute malicious prosecution, filing of a false complaint, abuse of process and false arrest.
28. Prosterman and the City of New York initiated and continued criminal proceedings against Plaintiff despite a lack of credible evidence against him, and notwithstanding Prosterman's knowledge that said proceedings would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.
29. All of the foregoing was a proximate cause of Plaintiff's injuries more fully described herein.
30. As a direct and proximate result of the foregoing acts committed by Prosterman, Plaintiff's liberty was constrained in that he was incarcerated, and forced to endure the harassment, humiliations, hardships and inhumanities associated with jail, had his liberty restrained upon conditions of bail and was otherwise harmed.
31. As a direct and proximate result of the foregoing acts, Plaintiff suffered great humiliation, ridicule, and mental anguish, depression, mental shock, mental trauma, post traumatic stress disorder, emotional and mental suffering.
32. Prosterman was acting within the scope of her employment when she terminated Plaintiff's

employment and communicated with Martinez.

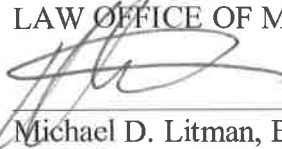
33. Martinez was acting within the scope of his employment when he filed a complaint with the New York Police Department, and when he spoke with Flatley.
34. Defendant Hospital, as the employer of Prosterman and Martinez, is vicariously liable for the torts of Prosterman and Martinez under the doctrine of respondeat superior.
35. The amounts sought herein, exceed the jurisdictional amounts of all courts of inferior jurisdiction.
36. One or more exceptions to Article 16 of the C.P.L.R. applies.

WHEREFORE, Plaintiff demands that judgment be entered in their favor against the defendants for compensatory, punitive and incidental damages in an amount to be determined by the trier of fact, together with the costs and disbursements of this action, along with whatever further and additional relief the Court deems just and proper.

Dated: White Plains, N.Y.
August 20, 2012

Yours etc.,
LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:


Michael D. Litman, Esq.
203 East Post Road
White Plains, New York 10601
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Defendants

VERIFICATION

I, the undersigned, an attorney admitted to practice in the State of New York, state that I am an associate of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of record for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
August 20, 2012


Michael D. Litman, Esq.